

26STCV03445 26STCV03445

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-28

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Case Number: 26STCV03445 Hearing Date: August 28, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

BRENT

WEBBER,

vs.

TCHAKALLA

ROMEO.

Case No.:

26STCV03445

Hearing Date: August 28, 2026

Pro

per Plaintiff Brent Webber's unopposed motion for relief from the dismissal is granted.

Plaintiff Brent Webber ("Webber") ("Plaintiff"),

in pro per, moves unopposed for relief under C.C.P. §473(b) on the grounds that the dismissal was entered by a clerical error on April 28, 2026, and is the result of a mistake, inadvertence, surprise, or excusable neglect. (Notice Motion, pg. 2.)

Background

Plaintiff filed his operative complaint on February 3, 2026, against Defendant Tchakalla Romeo ("Romeo") ("Defendant") for ten causes of action: (1) constructive eviction; (2) breach of the covenant of quiet enjoyment; (3) tenant harassment/interference; (4) wrongful retention of security deposit; (5) assault and civil threats; (6) trespass and interference with possessory rights; (7) intentional infliction of emotional distress; (8) negligent interference with emotional distress (in the alternative); (9) interference with prospective economic advantage; and (10) unfair business practice.

On April 28, 2026, Plaintiff requested dismissal of the Complaint without prejudice, which was granted by the Court on April 29, 2026. (4/28/26 Request for Dismissal.)

Plaintiff filed the instant motion on June 3, 2026. As of the date of this hearing no opposition has been filed.

Legal Standard

A judge must vacate a default or dismissal when a motion for relief under C.C.P. §473(b) is filed within 6 months after entry of the default or dismissal and is supported by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect that caused the entry of the default or dismissal. A judge is not required to afford mandatory relief, however, if the judge finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. (CCP § 473(b).)

Discussion

Plaintiff's motion is granted.

Here,

Plaintiff declares that the Request for Dismissal was filed due to mistake, excusable neglect, and inadvertence through a clerical error because he is a self-represented litigant and meant to dismiss the “Doe” defendants in order to process entry of default. (Decl. of Webber ¶¶2-3.) Plaintiff declares that he was unfamiliar with the complex layout of the Judicial Council Form CIV-110 and mistakenly checked Box 1.b.(5) for the “Entire action of all parties and all causes of action.” (Decl. of Webber ¶3.)

Here,

Plaintiff has demonstrated reasonable diligence in seeking relief and Defendant will not be prejudice by Plaintiff’s motion.

Accordingly,

the Court grants Plaintiff’s request for relief from dismissal of this action.

Conclusion

Plaintiff’s unopposed motion for relief from dismissal is granted.

Moving Party to give notice.

Dated:

August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court